

KMVTECH EDUCATION**IPL1 · Module 1****Introduction to IP**

Lesson: IP and development

Student Lesson Notes

Study with the online lessons. Prefer primary sources (Constitution, statutes, treaties, cases). © KMVTECH Education · September 2026.

1. CORE IDEA

Intellectual property (IP) rights protect creations of the mind: inventions, literary and artistic works, designs, symbols, names and images used in commerce. The main regimes are copyright, trade marks, patents, industrial designs, geographical indications and trade secrets.

IP balances incentive for creators and innovators with public access and competition. International frameworks (TRIPS, Berne, Paris, WIPO treaties) set minimum standards; national law implements and may go further.

For Uganda and developing economies, IP policy must support technology transfer, local innovation, cultural industries and access to medicines and knowledge.

- Over-protection can stifle follow-on innovation and access; under-protection can discourage investment and creative industries.

2. DETAILED RULES AND APPLICATION

Example: a local musician's song, a pharmaceutical formulation, a coffee origin name and a distinctive shop logo each engage different IP regimes with different terms and exceptions.

Identify the subject-matter first — work, mark, invention, design, secret — then select the correct regime and term.

3. UGANDA / PRACTICE, METHOD AND TRAPS

Uganda's IP framework is administered primarily through the Uganda Registration Services Bureau (URSB) and is shaped by the TRIPS Agreement, EAC instruments and domestic statutes (Copyright and Neighbouring Rights Act, Trade Marks Act, Industrial Property Act, etc.).

Exam trap: treating all IP as identical in duration, registration requirement and exceptions, or ignoring the development dimension of TRIPS flexibilities.

Method: classify the asset → choose regime → check subsistence/registration → map exclusive rights and exceptions → consider enforcement and policy context.

This overview orients every specialised module that follows.

SELF-TEST QUESTIONS

Attempt these before the platform practice quiz.

1. Name five main IP regimes.
2. What policy balance does IP try to strike?
3. Why does TRIPS matter for Uganda?
4. What is a geographical indication?
5. How can over-protection harm development?
6. What is the first analytical step in an IP problem?

Exam tip: Classify subject-matter before choosing the regime.

CHECKLIST BEFORE YOU LEAVE THIS LESSON

- I can state the main instrument(s) or Cap number.
- I can explain the core rule in my own words.
- I can apply the rule to a short Uganda / regional fact pattern.
- I know the common exam trap for this topic.
- I know how this lesson links to the next module.

Next step: Complete the online practice quiz for this lesson, then continue on the platform.